

		deposition notice and failure provide any supplemental response to the subject requests. <i>Plaintiffs to give notice.</i>
102	Daniels vs. Balderas, 25-01515105	<i>Off-calendar.</i>
103	Gonzalez vs. The Tjx Companies Inc, 26-01544831	Defendant Thomasina Renee Gagnon ("Defendant") demurs to the Complaint of plaintiff Otto Perez Gonzalez ("Plaintiff"). Defendant argues the claim for punitive damages and supporting allegations must be stricken because the allegations of malice and oppression are insufficient, unsupported by facts, and vague and uncertain. Plaintiff's action arises out of a motor vehicle collision. Plaintiff alleges that Defendant was traveling at a high rate of speed while using a cell phone when Defendant's vehicle crashed into Plaintiff's vehicle. Plaintiff further alleges that Defendant acted with knowledge that probable serious injury to others would result in conscious disregard for the safety of others. These allegations are not vague or incomprehensible. Thus, the Demurrer for uncertainty is OVERRULED. (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Defendant's argument that the allegations are insufficient to support a claim for punitive damages is not a proper ground for a demurrer, as it does not go to whether any of the asserted causes of action state sufficient facts or any of the other grounds that may be raised in a demurrer. (See Code Civ. Proc., § 430.10.) Because Defendant is attacking a remedy rather than an entire cause of action, the argument should be raised in a motion to strike. Based on the above, the Demurrer is OVERRULED in its entirety. Defendant to file an answer within 20 days. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
104	Zavala vs. Becker, 24-01387754	Defendant Karl W. Becker ("Defendant") moves to compel plaintiff Regina M. Zavala ("Plaintiff") to serve further responses to Defendant's Special Interrogatories, Set Two, and imposing monetary sanctions against Plaintiff in the amount of \$3,537.50.

		In response to Nos. 28-32, 34, and 41-42, which ask Plaintiff to provide facts or identify documents that support her affirmative defenses or claims for damages, Plaintiff responded with objections and reference to Code of Civil Procedure section 2030.210(a)(2). Plaintiff's responses indicate that the writings from which the responses could be derived include the Complaint, Plaintiff's Answer to Defendant's Cross-Complaint, and other documents that are in Defendant's possession and custody. Section 2030.230 provides, in relevant part: "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained." Here, Nos. 28-32, 34, and 41-42 do not necessitate the preparation or making of a compilation, abstract, audit, or summary of or from documents. For example, No. 28 asks Plaintiff to state all facts in support of her first affirmative defense for fraud. This interrogatory is not asking Plaintiff to provide a summary or abstract, or to compile information that can be found throughout several documents into one comprehensible compilation. Rather, it is asking Plaintiff to provide the facts upon which she relies to assert her affirmative defense. Plaintiff directs Defendant to documents such as the pleadings, correspondence from Defendant's prior counsel, and other documents filed in a separate case concerning an elder abuse restraining order but those do not appear to be documents from which the facts upon which Plaintiff relies may be derived or ascertained and, even if they were, it would be impossible for Defendant to determine which facts contained in the documents Plaintiff believes supports her affirmative defense and which do not. Defendant is entitled to ask for the facts and documents in support of what it is that Plaintiff is contending and Plaintiff's responses fail to provide that information. Thus, the Court finds Plaintiff's reliance on section 2030.230 to be improper and further responses to be warranted. Nos. 36-40 ask Plaintiff to provide information regarding healthcare providers she has visited for injuries sustained in connection with her intentional infliction of emotional distress cause of action, medical expenses and how they were calculated, sources of payments, and future medical expenses. In response, Plaintiff asserted objections based on privacy, relevance, and premature expert witness disclosure.
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		A claim for intentional infliction of emotional distress requires a showing of a plaintiff's severe suffering or extreme emotional distress. (<i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 1001.) By asserting such a claim, Plaintiff has tendered her mental and emotional condition in this action and the interrogatories are limited to information relating to the emotional distress injuries claimed by Plaintiff. That information is material to the merit of Plaintiff's intentional infliction of emotional distress claim. Further, these interrogatories do not request any information that could fall under the umbrella of premature expert witness disclosure. Defendant is merely asking whether Plaintiff received care from any healthcare providers for her claimed severe emotional distress and, if so, the amount of medical expenses incurred or being claimed by her, none of which requires expert testimony. Thus, Plaintiff's privacy, relevance, and expert witness objections lack merit. The Court notes that in response to No. 36, Plaintiff asserts that she is not yet eligible for Medicare and has no private insurance to which she might avail herself to see a healthcare provider since the date of the incident. This response suggests that Plaintiff has not received any services from healthcare providers in connection with her intentional infliction of emotional distress claim. If so, Plaintiff is required to state the same in a straightforward and direct manner. For the reasons stated above, the Court finds further responses to Nos. 36-40 to be warranted as well. In light of the above, the Motion to Compel Further Responses is GRANTED. Plaintiff is ORDERED to serve further responses within 20 days of the date of this order. The Court finds Plaintiff's failure to provide sufficient responses was without substantial justification. Thus, Defendant's request for monetary sanctions is GRANTED in the amount of \$1,500.00. (Code Civ. Proc., § 2030.300(d).) Sanctions to be paid within 30 days of the date of this order. <i>Moving party to give notice.</i>
105	Segal vs. Tesla, Inc., 26-01538545	Defendant Tesla Inc. ("Tesla") will move the court to set aside the Default that was entered against it on June 5, 2026. Here, the Declaration of Attorney Suard provides, "Due to an inadvertent error, the deadline for TESLA's responsive pleading passed, without TESLA filing any responsive pleading to Plaintiff's summons and complaint. Due to this error, the deadline for responsive pleading was not calendared and went unnoticed." Notably, no person from Tesla filed a declaration, and Suard does not have personal knowledge about why Tesla failed to timely submit the case